Energy Wave

CONFIDENTIAL — DRAFT — FOR DISCUSSION

Who is applying, and what the evidence establishes about them.

Entity by entity, fact by fact, with the scope of each.

Defense reviewers ask four things before they read a word of technology: who is the applicant, who owns and controls it, what has it done before, and what is it registered as. This page answers each with its evidence and marks what is not yet established.

1 · THE ENTITIES, AND THE ROLE OF EACH

Entity	Role	Facts	Status
McLean Capital Development LLC Wyoming · Filing ID 2025-001612265	Applicant of record, xTech Search 10	Filed 12 Feb 2025; Active and in good standing (registry, 8 Oct 2026); Ian Franklin McLean 100% member, President, Sole Member (certificate, 23 June 2026). Approved by the founder as the legal applicant; EnergyWave is its project name.	VERIFIED
EnergyWave, Inc. Delaware · intended	Intended operating company; would hold the IP, employ the team, receive the raise; the entity named on the deck	**Not formed** as of 14 Oct 2026 (founder's statement, ledger S-38); K&L Gates is handling the entity work (founder, 15 Oct 2026, S-44); no certificate in the package. Intended to qualify as a U.S. small business more than half owned by U.S. citizens for SBIR / STTR (founder to counsel, 5 Oct 2026).	OPEN
McLean Companies LLC California	Founder's existing company; letterhead on the August white paper; transitional services	Separate from both entities above by the founder's stated intent; related-party terms to be disclosed.	PARTIAL
GovThink Institute 501(c)(3), proposed	Proposed independent policy nonprofit; its relationship to the applicant and to EnergyWave, Inc. is to be defined with counsel	**Not filed, and no formal tie to EnergyWave** (founder's statement, 14 Oct 2026, S-38). Documentary status — incorporation, EIN, exemption application, determination — is not established in the reviewed evidence; the August 2026 client-prepared draft records that an EIN had not yet been obtained. Safeguards (independent board majority, no preferential access or IP flow) are proposals in that draft, not adopted policies; no ownership, control or financial relationship is asserted either way.	OPEN

2 · ELIGIBILITY FACTS FOR THE APPLICANT LLC

Fact	Value	Evidence	Status
Ownership and control	100% Ian Franklin McLean	Secretary's certificate, 23 June 2026 (transfer from prior member recorded).	VERIFIED
Citizenship basis for the >50% U.S.-citizen test	To be stated by the founder	No document in the package.	OPEN
Employees	4 (entered)	Basis and affiliates unverified.	OPEN
Prior DoW / DoD business	**No**	Founder's statement, 9 Oct 2026: the LLC has held no DoD contract or award. The submitted "Yes" and its Instagram link are superseded by the approved correction.	FOUNDER'S STATEMENT
Capital raised	≈ $10,000 including founder contributions; $0 outside debt or equity (9 Oct 2026). No funding raised and no SAFE executed (15 Oct 2026).	Two dated founder statements, both preserved; the reconciliation basis is **[TBD]**. The portal record is not altered.	FOUNDER'S STATEMENTS
Overlapping federal support	None known	No award or application record in the package; an NSF Project Pitch was drafted in Sept 2026 and its submission status is not recorded here.	OPEN

Fact	Value	Evidence	Status
SAM.gov / UEI / CAGE	UEI and CAGE fields blank in the 9-Oct portal observation and again on 14 Oct; current SAM.gov / UEI / CAGE status unverified	A blank field is not a registration search. Dated context from the September federal on-ramp note: none is required for xTech entry; a CAGE code is required for prize payment; SAM registration needs a formed entity, EIN, physical address and bank account.	OPEN
Physical operating location	None stated **[TBD] — physical operating location**	P.O. Box 8646, Newport Beach, CA 92658 is a mailing address. A planned office in the UCI area near the National Fuel Cell Research Center is a founder-reported plan (15 Oct 2026); no location, lease, facility access or institutional arrangement is established in the reviewed evidence.	[TBD]

Fact	Value	Evidence	Status
IP ownership of the proposed work	Entered N/A	The founder filed a provisional (expired) personally; an assignment agreement is planned on EnergyWave, Inc.’s formation; counsel’s review of a 2025 contractor IP agreement with a third party against the EnergyWave work is not evidenced in this package and remains a question for counsel (see 04_Legal_and_IP).	OPEN

3 · PROTECTION POSTURE

The Compartmentalization and Anti-Tamper Posture memo (v0.1, 12 Sept 2026) in this folder sets, before there is anything to protect, how know-how and any future hardware would be compartmentalized: knowledge partitioned into imageable / process / state bins; a tamper-responsive “paperweight” kill; post-quantum platform binding; split manufacturing; information compartmentalization; and the legal posture questions for counsel. It uses DoDD 5200.47E and DoDI 5200.39 vocabulary deliberately and claims no device. Its §8 questions are unanswered; v0.2 follows counsel’s answers.

4 · NAMING

“Department of War” is used in the company’s narrative documents. Any field that must match a government form or portal uses the agency name exactly as that form shows it.

Sources: Wyoming registry lookup and secretary’s certificate (M-18); Truong thread, founder’s message of 5 Oct 2026 (M-19); Approved_Submission_Corrections_2026-10-09 (M-06); Submitted_Application_Private_Review_2026-10-09 (M-06); Federal_On_Ramp_verified_2026-09-16 (M-03b); AT posture memo (S-09 / M-13); GovThink package (M-17); founder decisions of 15 Oct 2026 (S-44).